

CHAPTER 40*Landlord and Tenant (Rent Control) Act, 1949***ARRANGEMENT OF SECTIONS****Section.**

1. Variation of standard rents fixed by reference to new lettings.
2. Prohibition of premiums on grant or assignment of tenancy.
3. Excessive prices for furniture, &c., to be treated as premiums.
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SCHEDULES :

First Schedule.—Transitional provisions as to premiums.

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An Act to provide in certain cases for the determination by a Tribunal of standard rents for the purposes of the Rent and Mortgage Interest Restrictions Acts, 1920 to 1939 ; further to restrict the requiring of premiums in connection with tenancies to which those Acts apply ; to make further provision for the purposes of those Acts where the tenant shares part of his accommodation with his landlord or other persons or sublets part of his dwelling-house furnished ; to amend the Rent of Furnished Houses Control (Scotland) Act, 1943, and the Furnished Houses (Rent Control) Act, 1946, as respects security of tenure and the requiring of premiums and as respects the districts for which Tribunals are constituted ; to make certain minor amendments of the said Acts in so far as they apply to Scotland ; and for purposes connected with the matters aforesaid.

[2nd June 1949.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Variation of
standard rents
fixed by
reference to
new lettings.

1.—(1) Where apart from this section the standard rent of a dwelling-house would be—

- (a) the rent at which it was let on a letting beginning after the first day of September, nineteen hundred and thirty-nine, or
- (b) an amount ascertainable by apportionment of the rent at which a property of which it formed part was let on such a letting as aforesaid (whether such an apportionment has been made or not),

then, subject to the provisions of this section, the landlord or the tenant may make application to the Tribunal to determine what rent is reasonable for that dwelling-house, and on any such application the Tribunal shall determine that rent and shall notify the parties of their determination:

Provided that an application shall not be made in respect of a dwelling-house if a previous application in respect thereof has been made under this subsection.

(2) Subject to the provisions of the next following subsection, if the rent so determined by the Tribunal as aforesaid is less than what would be the standard rent apart from this section, it shall, as from the date of the determination thereof, be the standard rent of the dwelling-house.

(3) If on the hearing of the application it appears to the Tribunal that the limit imposed by the principal Acts on the rent recoverable in respect of the dwelling-house exceeds what would be the standard rent apart from this section, the Tribunal shall determine the amount of the excess; and if the rent determined in accordance with subsection (1) of this section, reduced by the amount of the excess, is less than what would be the standard rent apart from this section, the rent so determined and reduced shall as from the date of the Tribunal's determination be the standard rent of the dwelling-house.

(4) Subject to the provisions of this section, the rent which is reasonable for a dwelling-house shall, for the purposes of this section, be the rent which is in all the circumstances reasonable on a letting of that dwelling-house on the terms and conditions, other than terms and conditions fixing the amount of rent, on which the dwelling-house is let at the time of the application.

(5) In determining under this section what rent is reasonable for a dwelling-house, no regard shall be had to the fact that any premium has been paid in respect of the grant, continuance or

renewal of a tenancy; but the provisions of Part I of the First Schedule to this Act shall have effect in relation to such premiums paid before the commencement of this Act.

(6) In determining under this section what rent is reasonable for a dwelling-house forming part of another dwelling-house to which the principal Acts apply, regard shall not be had to the rent of the said other dwelling-house or any part thereof if no determination in respect of the dwelling-house or part has been made under this section.

(7) No application shall be made under this section in respect of any house—

(a) while it is under the management of a housing association within the meaning of the Housing Act, 1936 (including a development corporation established under the New Towns Act, 1946), or

(b) while any limitation of the rent is in force, being a limitation imposed by or under any enactment not contained in the principal Acts or this Act.

(8) In relation to a dwelling-house or property let at a progressive rent, subsection (1) of this section shall have effect with the substitution, for references to the rent at which the dwelling-house or property was let, of references to the maximum rent under the letting.

2.—(1) A person shall not, as a condition of the grant, renewal or continuance of a tenancy to which this section applies, require the payment of any premium in addition to the rent.

Prohibition of
premiums on
grant or
assignment of
tenancy.

(2) Subject to the provisions of Part II of the First Schedule to this Act, a person shall not, as a condition of the assignment of a tenancy to which this section applies, require the payment of any premium.

(3) This section applies to any tenancy of a dwelling-house, being a tenancy to which the principal Acts apply, such that when the dwelling-house is let under the tenancy it is a dwelling-house to which the principal Acts apply.

(4) Notwithstanding anything in subsection (2) of this section, an assignor may, if apart from this section he would be entitled so to do, require the payment by the assignee—

(a) of so much of any outgoings discharged by the assignor as is referable to any period after the assignment takes effect;

(b) of a sum not exceeding the amount of any expenditure reasonably incurred by the assignor in carrying out any structural alteration of the dwelling-house or in providing or improving fixtures therein, being fixtures which as against the landlord he is not entitled to remove;

- (c) where the assignor became a tenant of the dwelling-house by virtue of an assignment of the tenancy thereof, of a sum not exceeding any reasonable amount paid by him to his assignor in respect of expenditure incurred by that assignor, or by any previous assignor of the tenancy, in carrying out any such alteration or in providing or improving any such fixtures as are mentioned in the last foregoing paragraph; or
- (d) where part of the dwelling-house is used as a shop or office, or for business, trade or professional purposes, of a reasonable amount in respect of any goodwill of the business, trade or profession, being goodwill transferred to the assignee in connection with the assignment or accruing to him in consequence thereof.

(5) Where, under an agreement made after the twenty-fifth day of March, nineteen hundred and forty-nine, any premium has been paid which, or the whole of which, could not lawfully be required under the foregoing provisions of this section (or, if the premium was required before the commencement of this Act, which could not lawfully have been required if this Act had then been in force), the amount of the premium, or so much thereof as could not lawfully be required or have been required, as the case may be, shall be recoverable by the person by whom it was paid:

Provided that where an agreement has been made since the said twenty-fifth day of March and before the commencement of this Act, and the agreement includes provision for the payment of a premium which could lawfully be required under the enactments hereby repealed but which, if paid in pursuance of the agreement, would be recoverable, wholly or in part, by virtue of the foregoing provisions of this subsection, the agreement shall, without prejudice to the operation of this section, be voidable at the option of either party thereto.

(6) A person requiring any premium in contravention of this section shall be liable on summary conviction to a fine not exceeding one hundred pounds, and the court by which he is convicted may order the amount of the premium, or so much thereof as cannot lawfully be required under this section, to be repaid to the person by whom it was paid.

(7) Section eight of the Increase of Rent and Mortgage Interest (Restrictions) Act, 1920, is hereby repealed; but, without prejudice to the operation of section thirty-eight of the Interpretation Act, 1889, nothing in this section shall be construed as affecting the operation of the said section eight as respects anything done before the commencement of this Act.

(8) For the avoidance of doubt it is hereby declared that nothing in this section shall render any amount recoverable more than once.

3.—(1) Where—

- (a) whether before or after the commencement of this Act the purchase of any furniture, fittings or other articles has been required as a condition of the grant, renewal, continuance or assignment of a tenancy to which the last foregoing section applies, and

Excessive prices for furniture, &c., to be treated as premiums.

(b) the price exceeds the reasonable price of the articles, the excess shall be treated, for the purposes of the foregoing provisions of this Act and, so far as they continue to have effect, of the provisions of section eight of the Increase of Rent and Mortgage Interest (Restrictions) Act, 1920, as if it were a premium required to be paid as a condition of the grant, renewal, continuance or assignment of the tenancy.

(2) Where after the commencement of this Act any such purchase as is mentioned in paragraph (a) of the last foregoing subsection is required as therein mentioned, the price demanded shall, at the request of the person on whom the demand is made, be stated in writing; and if, without reasonable excuse, a person required to give such a statement in writing fails within fourteen days to do so, or knowingly gives a statement which is false in any material particular, he shall be liable on summary conviction to a fine not exceeding ten pounds.

(3) Subsection (1) of section nine of the Rent and Mortgage Interest Restrictions Act, 1923, is hereby repealed, but without prejudice to the effect of any statement of the price of articles given under that subsection before the commencement of this Act.

4.—(1) Where, in the case of a property being a dwelling-house to which the principal Acts apply, the standard rent of the property is a rent determined under section one of this Act, then—

Provisions as to apportionment where s. 1 applies.

- (a) for the purpose of any apportionment under the principal Acts which is necessary for determining the standard rent of a dwelling-house comprised in that property, the property shall be deemed, at the date in relation to which the standard rent of the dwelling-house is to be fixed, to have been let at the rent determined under subsection (1) of section one of this Act or, where the Tribunal determine the excess mentioned in subsection (3) of that section, the said rent reduced by the amount of the excess;

- (b) any such apportionment made before the determination under section one of this Act, whether it was made before or after the commencement of this Act, may be varied accordingly:

Provided that nothing in this subsection shall affect rent in respect of any period before the determination under section one of this Act.

(2) Where the standard rent of a dwelling-house, being part of a property which is a dwelling-house to which the principal Acts apply, has been determined under section one of this Act, then, in making any apportionment under the principal Acts for the purpose of ascertaining the standard rent of any other part of the property, no regard shall be had to the determination under section one of this Act.

**Register of
determinations
of Tribunal.**

5.—(1) The local authority shall prepare and keep up to date a register for the purposes of section one of this Act, and shall make the register available for inspection in such place or places and in such manner as the Minister may direct.

(2) The register shall be so prepared and kept up to date as to contain, with regard to any dwelling-house in respect of which a determination has been made under section one of this Act, being a dwelling-house in the area of the local authority,—

- (a) a specification of the dwelling-house to which the determination relates;
- (b) the prescribed particulars with regard to the terms and conditions of the tenancy;
- (c) the reasonable rent determined under subsection (1) of the said section one and any determination of the Tribunal under subsection (3) of that section; and
- (d) the matters required to be contained in the register by the provisions in that behalf of the First Schedule to this Act.

(3) It shall be the duty of the Tribunal, on their coming to a determination on an application under section one of this Act, to notify their determination to the local authority and to furnish to them such particulars as are requisite for enabling the local authority to discharge their functions under the foregoing provisions of this section.

(4) Section eleven of the Act of 1946 (which provides for proving the contents of a register under that Act in any proceedings) shall apply to a register under this section.

(5) For the purposes of this section, the local authority shall be—

- (a) elsewhere than in the administrative county of London, the council of the borough, urban district or rural district,
- (b) in the administrative county of London outside the City of London, the council of the metropolitan borough,
- (c) in the City of London, the common council.

(6) Any expenses incurred under this section by the common council of the City of London shall be defrayed out of the general rate.

(7) In this section the expression “prescribed” means prescribed by regulations made by the Minister.

6.—(1) For the purposes of section one of this Act, the Tribunal shall, for any district in which the Act of 1946 is in force, be the Tribunal constituted under section one of that Act. Tribunal for purposes of s. 1.

(2) Where the Act of 1946 is not in force, the Minister shall by order constitute such districts, of which each shall be the whole or part of the area of a local authority for the purposes of the last foregoing section, as after consultation with such authorities appear to him expedient, and for each such district the Tribunal for the purposes of section one of this Act shall be a Tribunal constituted in accordance with the Schedule to the Act of 1946 and the provisions of that Schedule shall apply thereto:

Provided that if the Minister so directs the same Tribunal may act for more than one district constituted under this subsection.

(3) Where the whole or any part of a district constituted under the last foregoing subsection becomes comprised in a district in which the Act of 1946 is in force, that subsection and any order made thereunder shall cease to apply thereto.

(4) Any order under subsection (2) of this section may be varied by a subsequent order thereunder made in the like manner and subject to the like provisions.

(5) Paragraphs (a) and (b) of section eight of the Act of 1946 (which empower the Minister to make regulations with regard to the tenure of office of members of Tribunals under that Act and with regard to proceedings before such Tribunals) shall apply for the purposes of this section.

7. Where under any contract—

- (a) a tenant has the exclusive occupation of any accommodation,
- (b) the terms on which he holds the accommodation include the use of other accommodation in common with his landlord or with his landlord and other persons, and
- (c) by reason only of the circumstances mentioned in paragraph (b) of this section, the accommodation referred to in paragraph (a) thereof is not a dwelling-house to which the principal Acts apply,

Provisions
where tenant
shares
accommoda-
tion with
landlord.

the Act of 1946 shall apply to the contract notwithstanding that the rent does not include payment for the use of furniture or for services.

8.—(1) Where—

- (a) a tenant has the exclusive occupation of any accommodation (in this section referred to as “the separate accommodation”),
- (b) the terms as between the tenant and his landlord on which he holds the separate accommodation include the

Provisions
where tenant
shares accom-
modation with
other persons
but not with
landlord.

use of other accommodation (in this section referred to as "the shared accommodation") in common with another person or other persons, not being or including the landlord, and

- (c) by reason only of the circumstances mentioned in paragraph (b) of this subsection, the separate accommodation would not apart from this section be a dwelling-house to which the principal Acts apply,

the separate accommodation shall be deemed to be a dwelling-house to which those Acts apply, and the following provisions of this section shall have effect.

(2) For the avoidance of doubt it is hereby declared that where for the purpose of determining the standard rent or rateable value of the separate accommodation it is necessary to make an apportionment under the principal Acts, regard is to be had to the circumstances mentioned in paragraph (b) of the last foregoing subsection.

(3) For the purpose of ascertaining the standard rent, a previous letting of the separate accommodation shall not be deemed not to be a letting of the same dwelling-house by reason only of any such change of circumstances as the following, that is to say, any increase or diminution of the rights of the tenant to use accommodation in common with others, or any improvement or worsening of accommodation so used by the tenant.

(4) For the purposes of any provisions of the principal Acts relating to increases of rent, or to the transfer to tenants of burdens or liabilities previously borne by landlords,—

- (a) any such change of circumstances as is mentioned in the last foregoing subsection, being a change affecting so much of the shared accommodation as is living accommodation, shall be deemed to be an alteration of rent;
- (b) where, as the result of any such change as is mentioned in the last foregoing paragraph, the terms on which the separate accommodation is held are on the whole less favourable to the tenant than the previous terms, the rent shall be deemed to be increased, whether or not the sum periodically payable by way of rent is increased ;
- (c) any increase of rent in respect of any such change as is mentioned in paragraph (a) of this subsection where, as a result of the change and of the increase of rent, the terms on which the separate accommodation is held are on the whole not less favourable to the tenant than the previous terms, shall be deemed not to be an increase of rent.

(5) In this section the expression "living accommodation" means accommodation of such a nature that the fact that it constitutes or is included in the shared accommodation is sufficient to bring the tenancy within paragraph (c) of subsection (1) of this section.

(6) While the tenant is in possession of the separate accommodation by virtue either of the contract of tenancy or of the provisions of the principal Acts, any term or condition of the contract of tenancy terminating or modifying, or providing for the termination or modification of, his right to the use of any of the shared accommodation which is living accommodation shall be of no effect:

Provided that where the terms and conditions of the contract of tenancy are such that at any time during the tenancy the persons in common with whom the tenant is entitled to the use of the shared accommodation could be varied, or their number could be increased, nothing in this subsection shall prevent those terms and conditions from having effect so far as they relate to such variation or increase as aforesaid.

(7) Subject to the provisions of the next following subsection and without prejudice to the enforcement of any order made thereunder, while the tenant is in possession as aforesaid of the separate accommodation no order or judgment for the recovery of any of the shared accommodation or for the ejectment of the tenant therefrom shall be made or given, whether on the application of the immediate landlord of the tenant or on the application of any person under whom the said landlord derives title, unless a like order or judgment has been made or given, or is made or given at the same time, in respect of the separate accommodation; and section three of the Rent and Mortgage Interest Restrictions (Amendment) Act, 1933 (which restricts the landlord's right to possession of a dwelling-house to which the principal Acts apply) shall apply accordingly.

(8) Without prejudice to the provisions of subsection (4) of this section, the county court upon the application of the landlord may make such order, either terminating the right of the tenant to use the whole or any part of the shared accommodation other than living accommodation, or modifying his right to use the whole or any part of the shared accommodation, whether by varying the persons or increasing the number of persons entitled to the use of that accommodation, or otherwise, as to the court seems just :

Provided that no order shall be made under this subsection so as to effect any termination or modification of rights of the tenant which, apart from subsection (6) of this section, could not be effected by or under the terms of the contract of tenancy.

(9) Any question arising under subsection (4) of this section shall be determined on the application either of the landlord or of the tenant by the county court, and the decision of the court shall be final and conclusive.

Certain
sublettings not
to exclude
operation of
principal Acts.

9. Where the tenant of any premises, being a house or part of a house, has sublet a part, but not the whole, of the premises, then as against his landlord or any superior landlord (but without prejudice to the rights against and liabilities to each other of the tenant and any person claiming under him, or of any two such persons) no part of the premises shall be treated as not being a dwelling-house to which the principal Acts apply by reason only—

- (a) that the terms on which any person claiming under the tenant holds any part of the premises include the use of accommodation in common with other persons, or
- (b) that part of the premises is let to any such person at such a rent as is mentioned in proviso (i) to subsection (2) of section twelve of the Increase of Rent and Mortgage Interest (Restrictions) Act, 1920 (which relates to furnished lettings).

Application of
three last
foregoing
sections.

10. The three last foregoing sections shall apply whether the letting in question began before or after the commencement of this Act, but not so as to affect rent in respect of any period before the commencement thereof or anything done or omitted during any such period.

Power of
Tribunal under
Act of 1946 to
extend security
of tenure.

11.—(1) Where a contract to which the Act of 1946 applies has been referred to a Tribunal under that Act, and the reference has not been withdrawn, the lessee may, at any time when a notice to quit has been served and the period at the end of which the notice takes effect (whether by virtue of the contract, of the Act of 1946 or of this section) has not expired, apply to the Tribunal for the extension of that period:

Provided that an application shall not be made under this section where the Tribunal have directed, under paragraph (a) of the proviso to section five of the Act of 1946, that a shorter period shall be substituted for the period of three months specified in that section as the period before the end of which a notice to quit shall not have effect.

(2) On an application being made under this section—

- (a) the notice to quit to which the application relates shall not, unless the application is withdrawn, have effect before the determination of the application;
- (b) the Tribunal, after making such inquiry as they think fit, and giving to each party an opportunity of being heard, or, at his option, of submitting representations in writing,

may direct that the notice to quit shall not have effect until the end of such period, not exceeding three months from the date at which the notice to quit would have effect apart from the direction, as may be specified in the direction;

- (c) if the Tribunal refuse a direction under this section, the notice to quit shall not have effect before the expiration of seven days from the determination of the application.

(3) On coming to a determination on an application under this section the Tribunal shall notify the parties of their determination.

(4) Where on an application under this section the Tribunal have refused a direction under subsection (2) thereof, no subsequent application under this section shall be made in relation to the same notice to quit.

(5) This section shall be construed as one with the Act of 1946, and references in this section to that Act shall be construed as references to that Act as extended by section seven of this Act.

12.—(1) Where the rent payable for any premises is entered in the register under the provisions of the Act of 1946, and, in a case in which the approval, reduction or increase made by the Tribunal is limited to rent payable in respect of a particular period, that period has not expired, the following provisions of this section shall apply in relation to the premises.

Prohibition
of premiums
on grant or
assignment of
furnished
lettings.

(2) Save as hereinafter provided, a person shall not, as a condition of the grant, renewal, continuance or assignment of rights under a contract to which the Act of 1946 applies, require the payment of any premium:

Provided that this subsection shall not prevent—

- (a) a requirement that there shall be paid so much of any outgoings discharged by a grantor or assignor as is referable to any period after the grant or assignment takes effect;

- (b) a requirement that there shall be paid a reasonable amount in respect of goodwill of a business, trade or profession, being goodwill transferred to a grantee or assignee in connection with the grant or assignment or accruing to him in consequence thereof.

(3) Subsections (5), (6) and (8) of section two, and section three, of this Act shall with the necessary modifications apply for the purposes of this section as they apply for the purposes of the said section two.

(4) The following provisions of the Act of 1946, that is to say—

- (a) paragraph (b) of subsection (1) of section four (which prohibits the requiring of premiums on a grant, continuance or renewal of a letting where the rent payable is registered under the Act of 1946);

(b) in subsection (2) of that section, the words "or consideration," "or value" and "or given";

(c) in subsection (1) of section nine of the Act of 1946, the words "or any consideration," "or the value of the consideration given," and "or the consideration given,"

are hereby repealed:

Provided that, without prejudice to the operation of section thirty-eight of the Interpretation Act, 1889, nothing in this section shall be construed as affecting the operation of the said provisions of the Act of 1946 as respects anything done before the commencement of this Act.

**Jurisdiction of
county court.**

13. Subsection (2) of section seventeen of the Increase of Rent and Mortgage Interest (Restrictions) Act, 1920 (which extends the jurisdiction of county courts in respect of proceedings under that Act) shall have effect in relation to any claim or proceedings for the recovery of any sum which is recoverable by virtue of this Act as it applies to the claims and proceedings mentioned in that subsection.

**Division
of areas
constituted
under Act
of 1946.**

14. Where the Minister has made an order directing that the provisions of the Act of 1946 shall have effect in any district, he may by subsequent order direct that such part of the district as may be specified in the order shall be excepted therefrom and be a separate district in which that Act has effect.

Expenses.

15. Any increase attributable to the provisions of this Act in the sums payable out of moneys provided by Parliament under paragraph 5 of the Schedule to the Act of 1946 (which provides for the remuneration and expenses of Tribunals) shall be defrayed out of moneys so provided.

**Orders and
regulations.**

16. Any power to make regulations or an order conferred on the Minister by this Act shall be exercisable by statutory instrument.

**Application
to Scotland.**

17.—(1) The provisions of this section shall have effect for the purpose of the application of this Act to Scotland.

(2) For any reference to the Minister of Health there shall be substituted a reference to the Secretary of State; for references to the Furnished Houses (Rent Control) Act, 1946, to sections four, eight and nine thereof and to paragraph 5 of the Schedule thereto there shall be respectively substituted references to the Rent of Furnished Houses Control (Scotland) Act, 1943, to sections three, six and seven and to subsection (3) of section one thereof; for any reference to the Housing Act, 1936, there shall be substituted a reference to the Housing (Scotland) Act, 1935; for any reference to the county court, there shall be

substituted a reference to the sheriff; for any reference to the grant, continuance or renewal of a term there shall be substituted a reference to the grant, continuance or renewal of a tenancy, and for any reference to a term in relation to a tenancy there shall be substituted a reference to the period for which a tenancy is granted, continued or renewed; and for any reference to a district in relation to a Tribunal there shall be substituted a reference to an area.

(3) Section five of this Act shall have effect as if

- (i) for any reference to a local authority there were substituted a reference to a Tribunal;
- (ii) subsections (3), (4), (5) and (6) were omitted; and
- (iii) there were inserted after subsection (2) the following subsection—

“(3) Section eight of the Rent of Furnished Houses Control (Scotland) Act, 1943 (which relates to certificates as to premises entered in the register kept under subsection (4) of section two of that Act), shall have effect as if the reference to that register included a reference to the register kept under this section”.

(4) Section six of this Act shall have effect as if for the reference to the local authorities therein mentioned there were substituted a reference to county and town councils.

(5) The First Schedule to this Act shall have effect as if in paragraph 8 thereof for the definition of the expression “reversion” there were substituted the following definition:—

“reversion”, in relation to the grant, continuance or renewal of a tenancy of a dwelling-house, means the estate or interest in the dwelling-house which immediately after the grant, continuance or renewal of the tenancy belonged to the immediate landlord of the tenant under the tenancy.

(6) If, after a contract to which the Rent of Furnished Houses Control (Scotland) Act, 1943, applies has been referred to a Tribunal by the lessee or by the local authority (either originally or for reconsideration), a notice to quit the premises to which the contract relates is served by the lessor on the lessee at any time before the decision of the Tribunal is given or within three months thereafter, the notice shall not take effect before the expiration of the said three months:

Provided that—

- (a) the Tribunal may, if they think fit, direct that a shorter period shall be substituted for the said three months in the application of this subsection to the contract that is the subject of the reference; and

- (b) if the reference is withdrawn the period during which the notice is not to take effect shall end on the expiry of seven days from the withdrawal of the reference.
- (7) Section eleven of this Act shall have effect as if—
- (i) the last foregoing subsection were contained in the Rent of Furnished Houses Control (Scotland) Act, 1943; and
 - (ii) for the reference to paragraph (a) of the proviso to section five of the Furnished Houses (Rent Control) Act, 1946, there were substituted a reference to paragraph (a) of the proviso to the last foregoing subsection.
- (8) The amendments specified in the second column of the Second Schedule to this Act, being amendments relating to minor matters, shall be made in the enactments specified in the first column of that Schedule.

Short title,
interpretation
and extent.

18.—(1) This Act may be cited as the Landlord and Tenant (Rent Control) Act, 1949.

(2) In this Act—

the expression “the Minister” means the Minister of Health,

the expression “premium” includes any fine or other like sum and any other pecuniary consideration in addition to rent,

the expression “the principal Acts” means the Rent and Mortgage Interest Restrictions Acts, 1920 to 1939,

the expression “the Act of 1946” means the Furnished Houses (Rent Control) Act, 1946,

and other expressions have the same meanings as in the principal Acts.

(3) This Act shall not extend to Northern Ireland.

SCHEDULES

FIRST SCHEDULE

Sections 1, 2, 5,
17.

TRANSITIONAL PROVISIONS AS TO PREMIUMS

PART I

*Adjustments, where s. 1 applies, for premiums paid before
commencement of Act*

1. Where on an application under section one of this Act made within twelve months from the date of the commencement of this Act it appears to the Tribunal that before the commencement of this Act any premium has been paid (whether lawfully required or not) in respect of the grant, continuance or renewal of a tenancy of the

dwelling-house to which the application relates, whether by the tenant or by a previous tenant of the dwelling-house, and has not been fully repaid or recovered, the Tribunal shall, if the tenant so requires, certify that this Part of this Schedule applies, and thereupon—

1ST SCH.
—cont.

- (a) except in a case falling within the next following sub-paragraph, the rent payable shall be limited in accordance with paragraph 2 of this Schedule;
- (b) where the Tribunal are satisfied that since the premium was paid and before the twenty-fifth day of March, nineteen hundred and forty-nine, the reversion had been conveyed or assigned for a consideration in money or money's worth, and so certify, the tenant of the dwelling-house at the time of the Tribunal's determination shall be entitled to recover from the person to whom the premium was paid such amount, if any, as is provided by paragraph 3 of this Schedule:

Provided that this paragraph shall not have effect where the Tribunal are satisfied that since the said grant, continuance or renewal the landlord has granted a tenancy of the dwelling-house under which, as against the landlord, a person became entitled to possession other than the person who was so entitled to possession of the dwelling-house immediately before that tenancy began.

2.—(1) Subject to the provisions of this paragraph, where sub-paragraph (a) of the last foregoing paragraph has effect, the rent payable by the tenant, or by any subsequent tenant, for any rent-period beginning after the Tribunal have issued their certificate and before the relevant date shall not, save as hereinafter provided, exceed the reasonable rent less the rental equivalent of the premium.

(2) Where under the principal Acts the landlord is permitted to increase the rent by reason of any circumstances arising after the determination by the Tribunal of the reasonable rent, then if the landlord has power so to do consistently with the contract of tenancy and the principal Acts he may recover the amount of the increase in addition to the amount, if any, which he may recover under the last foregoing sub-paragraph.

(3) Nothing in the foregoing provisions of this paragraph shall affect the rent payable for any rent-period after the landlord has granted a tenancy of the dwelling-house under which, as against the landlord, a person became entitled to possession other than the person who was so entitled to possession of the dwelling-house immediately before that tenancy began.

3.—(1) Where, in a case in which the Tribunal issue a certificate under sub-paragraph (b) of paragraph 1 of this Schedule, the existing rent is equal to or greater than the reasonable rent, the tenant shall be entitled to recover as mentioned in the said sub-paragraph (b) an amount equal to the product of—

- (a) the rental equivalent of the premium, and
- (b) the number of complete rent-periods in the period beginning with the date of the Tribunal's determination under section one of this Act and ending with the relevant date.

1ST SCH.
—cont.

(2) Where, in any such case as aforesaid, the existing rent is less than the reasonable rent, but the difference between them is less than the rental equivalent of the premium, the tenant shall be entitled to recover as mentioned in the said sub-paragraph (b) an amount equal to the product of—

- (a) the amount by which the rental equivalent of the premium exceeds the difference between the reasonable rent and the existing rent, and
- (b) the number of complete rent-periods mentioned in head (b) of the last foregoing sub-paragraph.

(3) Where the rent payable under the tenancy is a progressive rent, the foregoing provisions of this paragraph shall have effect as if for the references therein to the existing rent there were substituted references to the average rent payable under the tenancy over the period beginning with the commencement of the term, or of the continuance or renewal of a term, in respect of which the premium was paid and ending with the relevant date.

(4) In this paragraph the expression “existing rent” means the rent which would be payable by the tenant, apart from the provisions of section one of this Act and of this Schedule, for the rent-period comprising the date of the Tribunal’s determination of the reasonable rent.

4.—(1) Notwithstanding anything contained in the principal Acts, where the Tribunal issue a certificate under paragraph 1 of this Schedule with respect to any premium, so much of that premium as at the time when the certificate is issued has not been repaid or recovered shall not thereafter be recoverable otherwise than under the foregoing provisions of this Schedule.

(2) Save as provided in the last foregoing sub-paragraph, nothing in this Part of this Schedule shall prejudice any criminal proceedings against a person for having required any payment or the giving of any consideration in contravention of section eight of the Increase of Rent and Mortgage Interest (Restrictions) Act, 1920.

PART II

Premiums allowed on assignment where before commencement of Act premium paid on grant of tenancy

5.—(1) Where—

- (a) before the commencement of this Act a premium has been lawfully required, and paid, in respect of the grant, continuance or renewal of a tenancy to which section two of this Act applies, and
- (b) since the said grant, continuance or renewal the landlord has not granted a tenancy of the dwelling-house under which, as against the landlord, a person became entitled to possession other than the person who was so entitled to possession of the dwelling-house immediately before that tenancy began,

then, subject to the provisions of this paragraph, subsection (2) of the said section two shall not prevent the requiring, on any assignmen

of the first-mentioned tenancy or of any subsequent tenancy of the same dwelling-house, of a premium not exceeding the amount hereinafter specified.

1ST SCH.
—cont.

(2) Subject to the provisions of the next following sub-paragraph, the said amount is the amount which bears to the premium paid on the said grant, continuance or renewal the same proportion as the period beginning with the date at which the assignment takes effect and ending with the relevant date bears to the period beginning with the said grant, continuance or renewal and ending with the relevant date.

(3) Where before the assignment in question the Tribunal have issued a certificate under sub-paragraph (b) of paragraph 1 of this Schedule, then if the case falls within the following provisions of this sub-paragraph the foregoing provisions of this paragraph shall have effect subject to the following provisions, that is to say:—

- (a) if the existing rent is equal to or greater than the reasonable rent, the foregoing provisions of this paragraph shall not apply;
- (b) if the existing rent is less than the reasonable rent, but the difference between them is less than the rental equivalent of the premium therein mentioned, the last foregoing sub-paragraph shall apply as if the said premium were reduced by the product of—
 - (i) the amount by which the rental equivalent of that premium exceeds the difference between the reasonable rent and the existing rent, and
 - (ii) the number of complete rent-periods in the period beginning with the grant, continuance or renewal in respect of which the premium was paid and ending with the relevant date.

In this sub-paragraph the expression “existing rent” means the rent which would be payable by the tenant, apart from the provisions of section one of this Act and of this Schedule, for the rent-period comprising the date of the Tribunal’s determination of the reasonable rent.

PART III

Supplementary

6.—(1) For the purposes of paragraphs 2, 3 and 5 of this Schedule the relevant date, in the case of an application to the Tribunal on which they issue a certificate under paragraph 1 of this Schedule as respects a premium paid in respect of the grant, continuance or renewal of any term, shall be ascertained as follows.

(2) Where the term is a term of years certain current when the application to the Tribunal is made, being a term exceeding seven years, or the continuance or renewal was for such a term of years certain, the relevant date shall be the date of the expiration of that term of years certain.

1ST SCH.
—*cont.*

(3) In any case not falling within the last foregoing sub-paragraph, the relevant date shall be the date of the expiration of seven years from the commencement of the term, or of the continuance or renewal of a term, in respect of which the premium was paid.

(4) For the purposes of the two last foregoing sub-paragraphs, a term of years shall be deemed to be certain notwithstanding that it is liable to determination by re-entry or on the happening of any event other than the giving of notice by the landlord to determine the term; and a term of years determinable by the giving of such a notice as aforesaid by the landlord shall be deemed to be a term of years certain expiring on the earliest date on which such a notice given after the issuing of the certificate of the Tribunal would be capable of taking effect.

7. For the purposes of sub-paragraph (2) of paragraph 5 of this Schedule, the relevant date, in relation to an assignment taking effect where no such application has been made to the Tribunal as is mentioned in the last foregoing paragraph, shall be the date which would be the relevant date under the last foregoing paragraph in the case of such an application made at the date when the assignment takes effect.

8. In this Schedule the following expressions have the meanings hereby assigned to them respectively, that is to say:—

“reasonable rent” means the reasonable rent determined by the Tribunal under subsection (1) of section one of this Act;

“rent-period” means the period (whether weekly, monthly, annual or other) for which payments of rent are made;

“rental equivalent” means, in relation to any premium, the amount of the premium, or so much thereof as at the time of the issue of a certificate of the Tribunal under paragraph 1 of this Schedule has not been repaid or recovered, divided by the number of rent-periods between the commencement of the term, or of the continuance or renewal of a term, in respect of which the premium was paid and the relevant date;

“reversion”, in relation to the grant, continuance or renewal of a tenancy of a dwelling-house, means the estate or interest in the dwelling-house which, immediately after the grant, continuance or renewal of the tenancy, was expectant upon the determination of the term granted, continued or renewed.

9. Where, on an application to the Tribunal on which they issue a certificate under paragraph 1 of this Schedule, the rental equivalent of the premium exceeds the reasonable rent,—

(a) there shall be determined the date, being a date coinciding with the end of a rent-period, such that if that date were the relevant date the rental equivalent of the premium would be reduced so as to be as nearly as may be equal to, but not greater than, the reasonable rent; and

- (b) paragraphs 2 to 7 of this Schedule shall have effect, in relation to that application, as if the date determined under the last foregoing sub-paragraph were the relevant date and the rental equivalent of the premium were reduced accordingly.

1ST SCH.
—cont.

10.—(1) It shall be the duty of the Tribunal, on any application to them on which they issue a certificate under paragraph 1 of this Schedule, to determine such of the following matters as are required to be determined for the purposes of the application, that is to say—

- (a) the rental equivalent of a premium;
- (b) the relevant date; and
- (c) the date referred to in sub-paragraph (a) of the last foregoing paragraph, and the amount which would be the amount of the rental equivalent of a premium if that date were the relevant date;

and the determination by the Tribunal of any of the said matters shall be conclusive for all purposes.

(2) The matters required to be contained in the register kept under section five of this Act shall include, in relation to any dwelling-house as respects which a certificate has been issued under paragraph 1 of this Schedule,—

- (a) that certificate and any other certificate issued under this Schedule as respects that dwelling-house;
- (b) any determination of the Tribunal made as respects that dwelling-house under any of the provisions of this Schedule.

SECOND SCHEDULE

Section 17.

MINOR AMENDMENTS

Section

Amendment

Rent and Mortgage Interest Restrictions Act, 1939
2 & 3 Geo. 6. c. 71

Section eight ... For paragraph (d) there shall be substituted the following paragraph:—

“(d) for references to sections one hundred and twenty-eight and one hundred and twenty-nine of the Housing Act, 1936, there shall be respectively substituted references to sections thirty-nine and forty of the Housing (Scotland) Act, 1935, and for any reference to Part V of the Housing Act, 1936, there shall be substituted a reference to Part III of the Housing (Scotland) Act, 1925 ”.

M*

2ND SCH.
—cont.*Section**Amendment**Rent of Furnished Houses Control (Scotland) Act, 1943
6 & 7 Geo. 6. c. 44*

Section two ... In subsection (1) for the words from “it shall be the duty” to the end of the subsection there shall be substituted the words “they may by a notice in writing served on the lessor require him to give to them within such period (which shall not be less than seven days from the date of the service of the notice) as may be specified in the notice such information as they may reasonably require regarding such of the prescribed particulars relating to the contract as are specified in the notice”; in subsection (2) after the word “Tribunal” where it first occurs there shall be inserted the words “then, unless at any time before the Tribunal have entered upon consideration of the reference it is withdrawn by the party or authority by whom it was made”, and after the word “reasonable” there shall be inserted the words “or may if they think fit in all the circumstances dismiss the reference”; after subsection (3) there shall be inserted the following subsections:—

“(3A) Notwithstanding anything in the foregoing provisions of this section, a Tribunal shall not be required to entertain a reference made otherwise than by the local authority if they are satisfied having regard to the length of time elapsing since a previous reference made by the same party or to other circumstances that the reference is frivolous or vexatious.”

“(3B) An approval, reduction or increase under this section may be limited to rent payable in respect of a particular period”;

and for subsection (4) there shall be substituted the following subsection:—

“(4) The Tribunal shall keep a register and shall cause to be entered therein with regard to any contract under which a rent is payable that has been approved, reduced or increased under this section,—

(a) the prescribed particulars with regard to the contract, including a specification of the premises to which the contract relates, and the rent, as approved, reduced or increased under this section, and

*Section**Amendment*

2ND SCH.

—cont.

Rent of Furnished Houses Control (Scotland) Act, 1943

6 & 7 Geo. 6. c. 44—continued

Section two—cont.

(b) in a case in which the approval, reduction or increase is limited to rent payable in respect of a particular period, a specification of that period.

The Tribunal shall make the register available for inspection in such place or places and in such manner as the Secretary of State may direct."

Section three ... In subsection (1), after the words "such entry" there shall be inserted the words "(or in a case in which a particular period is specified, in respect of that period)".

Section seven ... In subsection (2) for the words from "to comply with" to "under this Act" there shall be substituted the words "within the time limited in that behalf to comply with the provisions of any notice served under subsection (1) of section two of this Act".

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Interpretation Act, 1889	52 & 53 Vict. c. 63.
Increase of Rent and Mortgage Interest (Restrictions) Act, 1920	10 & 11 Geo. 5. c. 17.
Rent and Mortgage Interest Restrictions Act, 1923	13 & 14 Geo. 5. c. 32.
Housing (Scotland) Act, 1925	15 & 16 Geo. 5. c. 15.
Rent and Mortgage Interest Restrictions (Amendment) Act, 1933	23 & 24 Geo. 5. c. 32.
Housing (Scotland) Act, 1935	25 & 26 Geo. 5. c. 41.
Housing Act, 1936	26 Geo. 5. & 1 Edw. 8. c. 51.
Rent of Furnished Houses Control (Scotland) Act, 1943	6 & 7 Geo. 6. c. 44.
Furnished Houses (Rent Control) Act, 1946	9 & 10 Geo. 6. c. 34.
New Towns Act, 1946	9 & 10 Geo. 6. c. 68.